

November 22, 2019



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20941

EXPIRATION DATE: 2021-08-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Air Sea Containers, Inc.
Doral, FL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of lithium ion batteries in non-specification packaging. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.185(b)(3)(ii) in that the outer packaging is not a UN specification packaging and 49 CFR § 173.185(b)(5) in that the batteries do not meet the minimum weight requirement, except as described herein.
5. BASIS: This special permit is based on the application of Air Sea Containers, Inc. dated September 05, 2019 submitted in accordance with § 107.105 and the public proceeding thereon.

Tracking Number: 2019094336

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The packagings used for the return shipments of lithium ion batteries from retail customers back to the product manufacturer must be as prescribed below:

(1) Inner packagings: Batteries are individually packaged in inner packagings which are UN specification 4G fiberboard boxes meeting the Packing Group II performance level and being repackaged in the original manufacturer's packagings.

(2) Outer packaging: The inner packaging must be placed inside a secondary outer packaging that is capable of withstanding a 1.2 meter drop test in any orientation and a vibration test as described in the Air Sea Containers, Inc.'s September 5, 2019 application and on file with the Office of Hazmat Safety Approvals and Permits Division;

(i) without damage to cells or batteries contained in the package;

(ii) without shifting of the contents that would allow short circuiting; and

(iii) without release of package contents.

(3) An outer package may contain not more than one repackaged battery.

b. TESTING: All cells and batteries must have met all requirements of § 173.185(a) prior to repackaging for the return shipment of the battery from consumer to product manufacturer.

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c. OPERATIONAL CONTROLS:

(1) Each battery offered for return shipment is the Yeti 400 that is nominally rated at 428 Wh and 10.8 V or a same tested type.

(2) A tested battery type is determined in accordance with 38.3.2.2 of the UN Manual of Tests and Criteria.

(3) The grantee must provide each consumer who repackages the battery in packagings and prepares shipments subject to this special permit detailed closure, packing, and shipping instructions.

(4) This packaging is only authorized in the return program for the product containing the lithium ion battery and is not authorized for transportation of damaged or defective batteries or battery disposal or recycling purposes.

(5) The return package must be sent to the consumer with appropriate labeling and markings which were on the original packaging.

(6) The nominal net weight and the gross weight of the package must not exceed 7.4 kg (16.5 pounds) and 11 kg (24.5 pounds).

(7) Packages must be stored away from heat.

(8) Packages must be securely closed prior to being offered for return transportation.

d. MARKING: Each outer package must be marked "DOT-SP 20941" in accordance with § 172.304.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

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9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous

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materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Steve H/Kenny Herzog